



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10102 (EXTENSION)
FIRST REVISION February 21, 1990
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10102 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DOT 31 1994
(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

ENPAC Corporation
Chardon, OH

July 13, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 10102
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1. ENPAC Corporation, Jacksonville, Florida, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described herein for use in the transportation of damaged or leaking packages of hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking, and sale of a polyethylene, removable head drum not to exceed 20 gallon capacity for overpacking damaged or leaking packages of hazardous materials or for repacking for disposal of hazardous materials that have spilled or leaked, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on ENPAC Corporation's applications dated December 8, 1988 and July 12, 1989, and supplementary test reports dated March 6, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon and additional information dated January 18, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials in salvage drums in accordance with the provisions of Section 173.3(c).

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.3(c).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a non-DOT specification, polyethylene, removable head drum not to exceed 20 gallon capacity, blowmolded or injection molded of high density polyethylene or rotationally molded or thermoformed from a low density polyethylene resin. Minimum wall thickness may not be less than 0.100-inch. Additionally, drum must have a polyethylene bag liner of at least 0.002 inch thickness. Closure is a fully threaded opening with a matched threaded lid sealing onto a closed cell polyethylene foam gasket.

b. Drum must be as shown in ENPAC Corporation drawing PLP-002, dated 7/23/87, included as Appendix A of the application dated December 8, 1988.

c. Drums must be tested in accordance with 49 CFR 178.19-7 except that the hydrostatic pressure test must be performed at 5 psig, and the compression test must be performed at 1200 lbs.

8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.
- b. The packagings covered by this exemption may not be stacked more than 3 high.
- c. The conditions specified in 49 CFR 173.3(c) must be satisfied when the drum authorized by this exemption is used as an overpack or salvage drum.
- d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- e. Each drum and each cover or lid manufactured under the terms of this exemption must be plainly and durably marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.
- f. In addition to the markings specified above, each drum must be marked in accordance with 49 CFR 178.19-6 except that "DOT-E 10102" must be substituted for "DOT-34." Additionally, the cover or lid must be permanently marked "DOT-E 10102."

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. May 31, 1991.

Issued at Washington, D.C.:


Alan I. Roberts
Director

Office of Hazardous Materials Transportation

FEB 21 1991

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.